

Rules Under Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963

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Rules Under Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963

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Rules Under Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963

Act 1047 of 1966

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Rules Under Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963

Published vide Notification No. G. O. MS. No. 2984, Revenue, dated 7th October, 1966 - S.R.O. No. A-1047 of 1966

G. O. MS. NO. 2984, Revenue, Dated The 7th October, 1966 - S.R.O. No. A-1047 of 1966. - In exercise of the powers conferred by section 62(2) and 73 of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act 26 of 1963), the Governor of Tamil Nadu hereby makes the following Rules:-

Rules under section 62(2) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act

26 of 1963

).

1.

A person who was employed in the administration of an inam estate immediately before the notified date and who is not willing to serve under the Government after such date shall be formally discharged; and it shall not be necessary for the Government to give him a calendar month's notice or one month's pay in lieu thereof.

2.

A person who is willing to continue in service and who is accordingly retained shall be paid pending the fixation of pay or scale of pay, at the rate at which or the scale in which he drew pay immediately before the date on which the management of the inam estate was assumed by the Government.

3.

All the rules governing the service conditions of Government servants are applicable to a retained inam estate employee excepting that he will be eligible for increments only from the date of his regular absorption in Government service.

4.

The retained inam estate employee shall be regularly absorbed in Government service, provided that he acquires the minimum general educational qualification prescribed for the post.

5.

Where any person who is retained possesses qualifications which fall short of the qualifications prescribed for the corresponding post in Government service, his pay shall be fixed as follows:-

(i)

If his pay fixed under rule 2 is less than the minimum of the time-scale for the post in Government service, his pay shall be fixed at such minimum.

(ii)

If his pay fixed under rule 2 is higher than the minimum of the time-scale for the post in Government service, his pay shall be fixed at the stage next below the pay fixed under rule 2 and personal pay may be granted to him to avoid any loss of emoluments and the personal pay so granted shall be absorbed in future increments.

(iii)

If, at any time, he acquires the qualification referred to in rule 4, he shall be allowed with effect on and from the date on which he acquired that qualification to draw pay in the scale of pay applicable to qualified persons and his pay shall be fixed in that scale with reference to the provisions in the Fundamental Rules.

(iv)

In the case of a person whose pay was fixed under rule 2 in an increment scale of pay that was in force in the inam estate in which he was working, he shall be treated as if he was transferred to a new post carrying the new pay and Fundamental Rule 23 shall apply to him.

6.

A retained employee shall be allowed to count his service from the date of taking over of the inam estate for the purpose of pension and gratuity.

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